

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

BRIAN BROWN, JOSIANNE BROWN and
MEGAN BROWN, SARAH BROWN and
CHRISTINA BROWN, Minors by their
Litigation Guardian, Brian Brown

Plaintiffs

- and -

CLYDE E. FLAHARTY and PRESTON
TRUCKING COMPANY INC.

Defendants

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) Nigel Gilby & Marinus Lamers, for the
) Plaintiffs
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) John M. Burnes, for the Defendants
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) **HEARD:** January 27, 28, 29, 30, February
) 2, 3, 4, 5, 6, 9, 10, 11, 12, 23, 24, 2004

W. A. JENKINS J.

[1] The Plaintiffs seek damages for the injuries suffered by the Plaintiff, Brian Brown in a motor vehicle accident which occurred on March 4, 1997 in the State of Pennsylvania.

FACTS

[2] During the early morning hours of March 4, 1997 the Plaintiff, Brian Brown, was proceeding in a northerly direction on State Route 15 in the Township of Richmond in the State of Pennsylvania when his vehicle was struck from the rear by a tractor-trailer unit owned by the Defendant, Preston Trucking Company Inc. and operated by the Defendant, Clyde E. Flaharty.

The accident occurred at approximately 1:30 a.m. in darkness. At that time the weather was clear and the roads were dry.

[3] The speed limit in the area is 45 miles per hour and Route 15 is two lanes wide. The American Truck Stop is located on the west side of the road at the scene of the accident and the area is partially lit.

[4] At the time of the accident the Plaintiff, Brian Brown, was operating his 1988 one-ton diesel pickup and he was towing a nineteen and a half foot house trailer. The lights on the pick-up and the brake lights and turn signals on the trailer were all functioning.

[5] The Defendant Clyde Flaharty was also travelling in a northerly direction on Route 15 and he was operating an 18-wheel tractor-trailer unit which was towing a second trailer. Both trailers were loaded with general freight. When the collision occurred, the Plaintiff, Brian Brown was making a left turn into the parking lot of the American Truck Stop.

[6] As a result of the accident, the Plaintiff, Brian Brown injured his neck, shoulders back and knees. He alleges that he has only been able to work part-time since the accident and he is claiming non-pecuniary general damages, pecuniary special damages, the cost of future care and future loss of income. His wife and children are claiming damages for loss of care, guidance and companionship pursuant to the *Family Law Act*.

LIABILITY

[7] At the trial Brian Brown testified that on the day before the accident he had delivered a house trailer to Middlebury, Pennsylvania and picked up another trailer that he was taking back to Glendale Homes in Strathroy. At the time of the accident he was turning left into the American Truck Stop where he planned to spend the night. He said he had stopped at that location on other occasions.

[8] Mr. Brown testified that when he reached the American Truck Stop, he turned left into the entranceway at the north end of the property. He said there was one vacant parking spot adjacent to Route 15 but he decided that it would be too noisy there so he continued along the

north side of the parking lot looking for another parking space. There were no vacant spots and so he drove around the back of the truck stop to re-enter Route 15 and proceed back to the vacant spot at the edge of the highway.

[9] When he reached the edge of Route 15 he brought his vehicle to a stop and waited for a southbound vehicle to pass. At that time he observed the lights of two northbound trucks about a half a mile away. As a result, he pulled out onto Route 15 and proceeded in a northerly direction. He said he travelled about 500 feet to the northerly entrance to the parking lot and as he approached that entrance he put on his left turn signal. He said he stopped for a few seconds to allow a truck that was coming out of the parking lot to exit onto the highway.

[10] As he began to turn left into the northerly entrance, he said the trailer he was towing was struck violently from the rear and pushed into the rear of his pickup truck. He said his pickup truck was pushed in a northwesterly direction and spun around on the parking lot. The trailer was completely destroyed by the impact and his pickup truck was damaged to the extent of approximately \$8,000.00.

[11] After the accident Mr. Brown learned that the trailer he was towing had been struck by a transport vehicle operated by Clyde Flaharty. He spoke with Clyde Flaharty and Mr. Flaharty said that he did not see the trailer until just before the collision.

[12] At the trial, Clyde Flaharty testified that he was a full-time truck driver and he had been driving for the Defendant, Preston Trucking, since 1978. At the time of the accident he was on his way from York, Pennsylvania to Kanoa, New York. He said he did that run five nights a week and the round trip takes about 12 hours.

[13] Mr. Flaharty testified that he left York, Pennsylvania before midnight on March 3, 1997 and he was driving a Ford tractor and towing two trailers loaded with general freight. As he travelled in a northerly direction on Route 15, there was no traffic in front of him. When he reached the area of the American Truck Stop he was traveling about 35 miles per hour. He said it was dark but he had his lights on and visibility was good.

[14] As he approached the American Truck Stop he said he saw the trailer the Plaintiff was towing coming out of the parking lot on his left. He is unable to say how far away it was at that time. He said he had no trouble seeing the trailer because it was large and white in colour.

[15] When he first saw the trailer it was moving across the highway in front of him. As a result, he applied his brakes and turned to his left. He said that no sooner had the Plaintiff's vehicle passed in front of him than it made a turn across in front of his vehicle again. He said his brake pedal was fully depressed and his vehicle was locked up. Just before he struck the trailer he put on the parking brake. He said he was trying to bring his vehicle to a stop.

[16] When he struck the trailer he said he was skidding in a northerly direction in the southbound lane at a speed of 25 to 30 mph. He said he hit the left side of the trailer near the rear corner. The damage to his truck was estimated at \$215.

[17] Mr. Flaharty said that he never saw the rear lights on the trailer or the turn signal. He said he didn't see any vehicles coming out of the parking lot that the Plaintiff was turning into. He said that after he struck the trailer his vehicle came to rest on top of the frame. He said his truck and trailer were blocking the southbound lane. He denied that he was trying to pass the Plaintiff's vehicle at the time of the accident. After the police investigated the accident, Mr. Flaharty was charged with driving too fast for conditions.

CONCLUSIONS

[18] The photographs of the accident scene indicate that Route 15 is straight and level for approximately half a mile to both the north and south of the American Truck Stop. Route 15 is two lanes wide in that area and there is a solid double line down the center of the road. Although it was dark it appears that visibility was good on the night of the accident and The American Truck Stop was reasonably well lit.

[19] Mr. Flaharty was an uncooperative witness whose explanation as to how the accident occurred is improbable. He said that when he first saw the trailer it had come out of the south entrance and it was making a u-turn into the north entrance. Since there is five hundred feet

separating the south and north entrances, the Plaintiff's vehicle could not have made a u-turn. It had to proceed in a northerly direction for several hundred feet before turning left.

[20] Mr. Flaharty admitted that he did not see the tail lights or the signal lights on the back of the trailer at any time prior to the accident. Clearly, the tail lights and signal lights on the back of the trailer were visible as the Plaintiff's vehicle proceeded towards the north entrance to the parking lot.

[21] Since Mr. Flaharty was travelling at a greater speed than the Plaintiff's vehicle and since he did not apply his brakes until after the Plaintiff pulled onto the road, it is probable that the Plaintiff's version of how the accident occurred is more accurate. Indeed, although Mr. Flaharty denies it, he apparently told the investigating officer that when he realized the Plaintiff's vehicle was not moving he hit the brakes and steered to the left in an attempt to avoid a rear-end collision.

[22] As a result of the foregoing, I find that the Plaintiff's vehicle was already on Route 15 proceeding in a northerly direction towards the north entrance to the parking lot when Mr. Flaharty became aware of it. At that time the Plaintiff's vehicle was slowing down and signalling for a left turn.

[23] I further find that Mr. Flaharty was traveling at approximately 35 mph and was sufficiently close to the Plaintiff's vehicle that he could not stop in time to avoid striking it. As a result, he applied his brakes and turned to the left into the southbound lane. At that time Mr. Flaharty was about 100 feet away from the Plaintiff's vehicle which was turning left into the north entrance to the parking lot. Mr. Flaharty's vehicle skidded in a northerly direction and he collided with the left rear side of the Plaintiff's trailer.

[24] I find that the Defendant Flaharty was not keeping a proper lookout and that he failed to realize that the Plaintiff's vehicle was traveling at a slow rate of speed and was intending to turn to the left until it was too late to avoid a collision. As the overtaking vehicle, he was obliged to make sure he could pass in safety. I am therefore satisfied that Mr. Flaharty was negligent in failing to keep a proper lookout and in failing to apply his brakes in time.

[25] In view of my findings and the fact that the Defendant Flaharty pleaded guilty to traveling too fast for conditions, I find that he was primarily responsible for this accident.

[26] Since the Plaintiff was intending to turn left into the parking lot he was obliged to give a clearly visible signal and to make sure that his turn could be made in safety. I find that Mr. Brown gave a clearly visible signal of his intention to turn left but that he did not see the Defendant's vehicle approaching from the rear prior to commencing his left turn. Clearly the Defendant's vehicle was there to be seen and I am satisfied that the Plaintiff failed to look in his rear-view mirror. As a result, I find that the Plaintiff was negligent in failing to ascertain that his turn could be made in safety.

[27] Since the Defendant Flaharty failed to keep a proper lookout and to apply his brakes in time, I find him 75 per cent to blame for the accident. Since the plaintiff failed to make sure his left turn could be made in safety I find that he was 25 per cent to blame for the accident. As the State of Pennsylvania has a comparative negligence rule that a Plaintiff is entitled to recover if he is found less than 50 per cent to blame for an accident, I am satisfied that the Plaintiffs are entitled to recover 75 per cent of their damages.

DAMAGES

[28] The Plaintiff, Brian Brown, is 44 years of age and married. He lives with his wife Josianne Brown and three daughters on the family farm at R.R. #2 Mount Brydges. The farm is 100 acres in size and 80 acres are used for crops.

[29] The Plaintiff graduated from grade 12 and went to Ridgetown College where he studied agricultural production and management. He has run the family farm since he bought it from his parents in 1984. Josianne Brown was also born on a farm and she helps run the operation.

[30] In addition to growing corn, soya beans and pumpkins the Plaintiffs, also have an egg quota and they keep 3,000 laying hens on the farm. They rent an additional 100 acres on which they grow corn and soya beans.

[31] Prior to the accident the Plaintiff Brian Brown also drove a truck on a part-time basis for Glendale Trailers. In addition he did custom combining and planting for his neighbours.

[32] Since the accident he said that he has not been able to drive a truck for Glendale Trailers or do custom farm work for his neighbours. He has had to reduce the number of acres he farms because he is unable to work full-time at farming. He has also had to hire custom contractors to do some of his planting and harvesting.

[33] At the present time, the Plaintiff Brian Brown and his wife are running the egg laying operation and planting crops on their farm with the assistance of hired help. They also produce and market pumpkins.

[34] After the accident, Brian Brown said that his hands and knees were swollen and sore. He said that as the day wore on his neck, back and shoulders became stiff and sore. He said the ride from Pennsylvania back to Mount Brydges was uncomfortable.

[35] The next day Mr. Brown went to see his family doctor and complained of pain in his neck, back, knees and hands. He was given medication and sent for x-rays which were negative.

[36] By the following week he had pain throughout his body, together with headaches and dizziness. As a result, he was given additional medication and he was sent to the Strathroy General Hospital for physiotherapy.

[37] During the next few months he took medication, physiotherapy and massage therapy. Unfortunately, his condition deteriorated and he suffered from severe headaches, blurred vision, pain, limitation of movement in his neck, left shoulder, left arm, back, right hip, right leg and right knee. He testified that he couldn't sit for more than half an hour and couldn't do any heavy lifting or work above his shoulders. He said he wasn't comfortable driving and had to use an obusform backrest.

[38] During the latter part of 1997 the Plaintiff said he tried to drive his tractor and do some harvesting with his combine. He found that driving the tractor or combine exacerbated his condition because of the vibration. He said he could only work for half-an-hour or so due to pain

in his neck and back. As a result, during 1997 his relatives, friends and neighbours did a lot of the planting, spraying and harvesting.

[39] The Plaintiff said that he was able to help his wife gather the eggs and look after the chickens. He found it difficult to feed the chickens because he had to carry buckets of feed. It was also hard to clean the manure because the work was so heavy.

[40] In the fall of 1997 he and his wife and children harvested and sold pumpkins. In addition, in October they operated Farmer Brown's Pumpkin Patch which is a children's agricultural center that they set up on their farm.

[41] That month his pain was so severe that he attended at the emergency department of the Strathroy General Hospital. He had five injections for pain which gave him some relief.

[42] In 1998 he said his headaches became worse. He had constant pain in his neck, left shoulder and back and he became depressed. He was no longer taking physiotherapy but was doing home exercises.

[43] Dr. Fournier, the Plaintiff's family doctor referred him to Dr. Klassen, a pain specialist who he saw in the spring of 1998. He recommended exercises and massage therapy as well as medication.

[44] Later that spring, Dr. Fournier referred Mr. Brown to Dr. Finestone, a physiatrist. Dr. Finestone changed his medication and recommended that he see a psychologist for pain management.

[45] Since he couldn't do any heavy work, the Plaintiff applied for a job at Formet Industries. The job involved light assembly work and he was hired on probation. He said that the standing and bending increased the pain in his neck and back and his employment was terminated at the end of the 90-day probation period.

[46] While he was at Formet Industries he consulted a social worker named Ike Lindenberger who counseled him in pain management. He said he saw Mr. Lindenberger several times and thought that it helped him to talk to someone about his problems.

[47] The Plaintiff said his condition did not improve in 1999 and although he was trying to do some farm work he was forced to cash in a \$10,000 RSP and borrow on his life insurance to pay his bills. He said the pain in his neck and back and the headaches were interrupting his sleep and he was having problems with erectile dysfunction. As a result, he and his wife began to experience difficulties in their marriage.

[48] The Plaintiff said that he did some light work on the farm including picking up seed and supplies, combining, harvesting and selling pumpkins. He said he helped collect the eggs and remove the manure from the chicken barn. During 1999 his relatives, friends and neighbours were still helping with the farm work but by this time he had lost most of his custom farm work.

[49] In the year 2000 Mr. Brown said that his problems continued. As a result, Dr. Fournier referred him to Dr. Swamy, a psychiatrist, who saw him on six occasions between January and May. Dr. Swamy put him on an anti-depressant which helped for awhile. The Plaintiff said that he didn't relate to Dr. Swamy and he stopped going to see him.

[50] By this time the Plaintiff said his relatives, friends and neighbours were no longer helping on the farm and he had to hire people to do planting, spraying and harvesting. In the year 2000 he paid out about \$9,600.00. He said he commuted his No Fault benefits and used the \$30,000.00 to help pay his bills.

[51] He said that he was still doing some work in the fields and in the chicken barn but there was no improvement in his condition. He said relations with his wife and daughters deteriorated because he was in pain most of the time and was not able to participate in family activities.

[52] During 2001 he continued to consult Dr. Fournier and Dr. Klassen who continued to inject his neck in an effort to control his pain. He also saw Dr. Thyret, a chiropractor. In addition, he had massage therapy.

[53] Since his condition seemed to be deteriorating, he said that he pretty much lost hope and felt that his dreams and aspirations were no longer achievable. He continued to work on the farm as much as possible, but he was having to pay people to come in and help. He said his RSP's and savings were gone and he was in debt. He said he was depressed and felt suicidal.

[54] On September 27, 2001, the Defendants had Mr. Brown examined by Dr. Margulies, a psychiatrist. Dr. Margulies felt he should have continued with psychiatric treatment and recommended that he seek psychiatric therapy in the future.

[55] In addition, the Defendant had Mr. Brown examined by Dr. Lloyd, an orthopedic specialist on July 11, 2001. Dr. Lloyd felt that most of the Plaintiff's problems were psychological and that he had largely recovered from his injuries.

[56] In 2002, the Plaintiffs renovated the chicken barn to modernize and mechanize the feeding and manure removal. The cost of the renovations was about \$62,000.00. As a result, the Plaintiff Brian Brown was able to be of more assistance in the chicken operation because he did not have to do any heavy lifting. He said he was able to help his wife collect the eggs each day because they lowered the floor and changed the height of the laying cages.

[57] In order to modernize the chicken barn he said they had to harvest a significant amount of hardwood from the bush on their farm. He was reluctant to do this because the trees were not yet mature but there was no other way to raise the money.

[58] The Plaintiff said that he tries to help in the planting and harvesting but he has to hire people to do most of that work. He said they continued to plant and market pumpkins in 2002 and to run the Farmer Brown Pumpkin Patch.

[59] In September of 2002, Mr. Brown consulted Dr. Earl Russell, a pain specialist at the Four Counties Hospital in Newbury. Dr. Russell has been treating him with epidural injections and medication since that time.

[60] He also saw Dr. Ferguson, a urologist, concerning his erectile dysfunction. He is currently taking Viagra to help alleviate that problem.

[61] In 2003 he saw his family doctor and Dr. Russell and he took some psychological counselling. Unfortunately, he couldn't afford to continue taking psychological counselling but he hopes to resume treatment in the future. He is still taking physiotherapy, massage therapy and various medications.

[62] On November 24, 2003 he had to go to the emergency department at the Strathroy Hospital because of headaches and pain in his neck and back. He advised them that he suffered from dizziness and had passed out on occasion. In fact, he testified that he passed out on November 25 and returned to the hospital for more medication. As a result, the doctors reported his condition to the Ministry of Transportation and told him not to drive. Although his licence has not been suspended, his wife chauffeured him most of the time.

[63] Mr. Brown testified that in 2003 he helped plant and harvest the crops on his farm but most of the work was done by people he hired to do custom work. He said that from the date of the accident to the date of the trial he has suffered a loss of income in the amount of \$144,000. He said he will continue to lose income in the future because he has reduced the number of acres he plants, he has to hire people to work on his farm, he is unable to do custom work for his neighbours and he cannot drive a truck for Glendale Homes.

[64] Although he believes his injuries will prevent him from returning to full-time work, he hopes to continue to operate the farm in the future. The farm has been in his family for many years and he wants to pass it on to his children and grandchildren. He testified that if the accident had not happened he would have continued to operate the farm, drive a truck and do custom work.

[65] Josianne Brown, testified that before the accident they intended to buy more land, more egg quota and more equipment. At the time of the accident they were renting 200 acres and some land across the road from their farm came on the market. It was not, however, feasible to buy that land because of her husband's injuries.

[66] She testified that since the accident her husband has been unable to work full-time. He is still able to help collect the eggs and he does some work in the fields. They have to hire people to do some of the hoeing and spraying and to help clean the barns when they get a new flock of chickens. They also hire people to help with the planting and harvesting.

[67] They have had to reduce the number of acres that they plant and her husband is no longer able to do custom work. They now sell their crops when they are harvested in order to maintain their cash flow rather than waiting for the best market price.

[68] Before the accident Brian Brown did a lot of the work around the house. Now she and the children cut the grass and shovel the snow. She said they hire someone to plow out the driveway. At the present time no one is painting or maintaining the house.

[69] She said her husband has been moody and short-tempered since the accident. She said he seems frustrated and emotional. As a result, she sometimes feels like a single parent.

[70] Brian Brown's relations with his three daughters have suffered as a result of the accident. He is short with them and they do not get along very well. When the trial began, two of his daughters were living away from home because of the stress involved in the litigation. Mrs. Brown said she hopes that is temporary.

[71] Megan the eldest daughter, is 17 years of age and living with friends. Sarah who is 15 years of age returned home towards the end of the trial. Christina the youngest child is not as close to her father since the accident and she suffers because her mother has not been able to spend as much time with her since the accident. All of the children have had to do more work around the house and the farm since the accident.

[72] Michael Nenez, Josianne Brown's brother operates a large farm near Kerwood. He said that prior to the accident he and Brian Brown used to work together. He said they worked on each other's farms doing planting, spraying, harvesting and shipping.

[73] He said that Brian Brown was a strong and enthusiastic worker. He would work 12 or 15 hours a day during the spring and fall. He said Brian Brown didn't have any physical limitations.

[74] After the accident, Brian Brown couldn't do any heavy lifting and he had to help him with work on his farm. He said in the winter months he would help repair Brian Brown's equipment. He said during the busy times his father and his son would also work on Brian Brown's farm.

[75] Mr. Nenez estimated that since the accident Brian Brown has been unable to work more than two or three hours a day. He said he appears to be stiff and sore and he takes a lot of medication for pain.

[76] He said there is a lot of work the plaintiff cannot do because it is dangerous and he is not strong enough to handle the work. He said it is hard for him to work around farm equipment because he has difficulty climbing, bending and lifting.

[77] Mr. Nenez said that he and his son helped Mr. Brown for two or three years after the accident but by 2000 they were so busy on their own farm they could no longer help out. He said he never sent his brother-in-law a bill for the work he and his family did.

[78] After 2000, he said Brian Brown had to pay custom operators to help him run the farm. Mr. Nenez said that Brian Brown's condition has worsened during the last two or three years. During a holiday they took in France he had to drive a lot of the time because Brian Brown was in pain. He said the plaintiff couldn't keep up with them when they walked through museums and other places of interest.

[79] Mr. Nenez said that the Plaintiff's farm is now run down as routine repairs aren't being made. In addition, Josianne Brown and the girls are not able to socialize as much as they used to as they have to do a lot of the work around the house and the farm. He said the Plaintiff's children resent the fact that they can't participate in as many activities as they used to because

they don't have the time or the money. He said there is some doubt as to whether they will be able to go to college or university.

[80] Dr. Patrick Potter, a physiatrist who practices at Parkwood Hospital, testified that he saw Brian Brown at Parkwood Hospital on February 13, 2003. He said Mr. Brown complained of pain in his neck, shoulders, back and legs together with headaches, constipation and bladder and sexual dysfunction. He said Mr. Brown had limitation of neck movement in all directions and limitation of movement in his back. He had radiation of pain into his legs with accompanying weakness and he sometimes walked with a cane.

[81] Dr. Potter said there was no evidence of neurological injury and no damage to his spine. There was no muscle wasting but Mr. Brown did complain of tenderness in both his neck and lower back. Mr. Brown also complained of headaches beginning at the back of his head and Dr. Potter felt that he was depressed because of long-term pain.

[82] Dr. Potter diagnosed his condition as resulting from soft tissue injuries to his cervical and lumbosacral spine with referred pain into his arms and legs, together with headaches and depression. He said that Mr. Brown was suffering from chronic pain syndrome. Dr. Potter recommended his bladder problems and sexual dysfunction be investigated. He felt that Mr. Brown's constipation was probably caused by the medication he was taking.

[83] Dr. Potter recommended that Mr. Brown continue with massage therapy and acupuncture for temporary relief of his pain. He also recommended Botox injections to reduce his headaches and he suggested psychological counseling.

[84] Dr. Potter said that in his opinion Mr. Brown's injuries and complaints were caused by the motor vehicle accident. He said that Mr. Brown will not recover from his injuries and it is unlikely that he will be able to return to work on a full-time basis.

[85] Dr. Potter saw Mr. Brown again on November 28, 2003 and found that there had been no improvement in his condition. He does not believe that Mr. Brown will be competitively employable in the future. He said that he does not have the physical ability to work as a farmer,

truck driver or labourer in a factory. He believes, however, that with modifications to his farm and his equipment he can work on a part-time basis. He said that in order to maintain the farm Mr. Brown will probably have to hire additional help.

[86] Dr. Potter testified that Mr. Brown is among the 10 or 15 per cent of people who suffer soft tissue injuries and who do not recover from those injuries. Although Mr. Brown has pain amplification syndrome, he does not believe that Mr. Brown is overstating his pain and he said that Mr. Brown's disabilities are physical in nature. Dr. Potter testified that he reviewed the future care report prepared for Mr. Brown and he agrees with the items recommended in that report.

[87] Dr. Earl Russell, an anesthetist who runs pain clinics at Four Counties Hospital and the Ingersoll Hospital, testified that he first saw Mr. Brown on September 16, 2002. He said he thought Mr. Brown was suffering from pain caused by soft tissue injuries to his neck and back and nerve root irritation.

[88] As a result, Dr. Russell did a series of epidural injections in Mr. Brown's neck and back in an effort to reduce his pain and allow him to do some work on the farm. He also prescribed medication for his headaches. He said he has seen the patient every three weeks for the last two years and he expects to see him in the future.

[89] In Dr. Russell's opinion the plaintiff falls into the 20 per cent of people who suffer soft tissue injuries and develop chronic pain. He said that in addition to chronic pain, Mr. Brown suffers from depression and some cognitive impairment. He does not believe the plaintiff will be competitively employable in the future.

[90] Dr. Michael MacDonald, a clinical psychologist who has a PhD in psychology, testified that he saw Brian Brown on four occasions in 2003. He last saw him on December 2 of that year.

[91] Dr. MacDonald testified that a significant part of his practice involves patients suffering from chronic pain. He said that chronic pain is organic in nature and psychological problems

may develop as a result of long-term pain. He said Mr. Brown is suffering from chronic pain, together with depression and post-traumatic stress disorder.

[92] He testified that Mr. Brown's pain is sufficiently severe that it interferes with his ability to concentrate and with his memory. He has low endurance and frequent flare-ups of pain. After seven years it is Dr. MacDonald's opinion that Mr. Brown will not improve in the future and that he is not capable of gainful employment.

[93] Dr. MacDonald said that Mr. Brown will require treatment in the future to help him cope with his pain and reduce the stress caused by flare-ups. He said the treatment will not cure his condition but will help him improve his quality of life.

[94] Dr. MacDonald said that Mr. Brown will need an initial course of 15 or 20 treatments with a psychologist and continued use of antidepressants. He estimates that Mr. Brown will require approximately 48 treatments over the next two years. He may also need ongoing treatment for the rest of his life.

[95] Dr. MacDonald recommended that Mr. Brown continue to work on his farm. He said that working on the farm is good for his body and improves his self-esteem.

[96] Steven Trujillo of Future Care Costs Associates did a work capacity assessment of Mr. Brown and concluded that he is not competitively employable as a farmer, truck driver or factory worker. He said it is highly unlikely that after seven years he will become competitively employable in the future. He said that Mr. Brown is working on the farm on a regular basis but on a very reduced schedule. He said that he is not competitively employable as a farmer.

[97] Keith Hayes of Future Care Costs Associates testified that his firm prepared a Future Care Cost report which was reviewed and approved by Dr. Potter. That report includes estimates of initial care costs incurred by Brian Brown and annual costs that will be incurred by him in the future. Those costs include medications, hydrotherapy, exercise equipment, psychological counseling, massage therapy, occupational therapy, housekeeping, handyman costs, transportation expense and the cost of hiring additional help on the farm.

[98] The Plaintiff called James Hoare, a forensic accountant, to provide an opinion on the past losses suffered by Mr. Brown as a result of the motor vehicle accident and on the losses he will suffer in the future as a result of his inability to work. Mr. Hoare assessed Mr. Brown's pretrial loss of income from custom work trucking and farming at \$144,800.00 to December 31, 2003. Mr. Brown is also claiming special damages totaling \$99,467.53.

[99] James Hoare assessed Mr. Brown's future losses on the basis of three different scenarios. Scenario #1 involved estimates of his loss of trucking income in the future, loss of revenue from custom work and the extra expense he will incur for work on the farm resulting in a future loss of \$30,100.00 per annum.

[100] Scenario #2 assumes that Mr. Brown would have worked full-time as a truck driver and results in an annual future loss of between \$25,500.00 and \$38,900.00. Scenario #3 assumes that he would have worked in a factory on a full-time basis if he hadn't been injured and results in a future loss of \$40,400.00 per annum. In Mr. Hoare's opinion, Scenario #1 is the most appropriate method of calculating Mr. Brown's future loss of income as it identifies the specific expenses and revenues that are impacted by the motor vehicle accident.

[101] Mr. Brown is also claiming non-pecuniary general damages which his counsel assesses at \$115,000.00. As well, Josianne Brown and her three daughters have *Family Law Act* claims and Mr. Brown's counsel assesses Josianne Brown's claim at \$30,000.00 and the daughters' claims at \$10,000.00 each for a total of \$60,000..00.

THE DEFENCE

[102] The Defendants called two witnesses in addition to the Defendant Clyde Flaharty. They were Dr. Geoffrey Lloyd, an orthopedic surgeon, and Dr. Alfred Margulies, a psychiatrist, both of whom examined Mr. Brown.

[103] Dr. Lloyd testified that he saw the patient on July 11, 2001 at the request of the Defendants. He said Brian Brown seemed to be pain focused and he felt that there were psychological problems associated with his physical injuries.

[104] Dr. Lloyd was unable to find any muscle spasm in Mr. Brown's neck or back and he said he appeared to have normal flexion and extension of his neck. He complained of tenderness in his neck and back but there were no neurological signs of injury.

[105] Dr. Lloyd reviewed Mr. Brown's MRI and was unable to find any reason for his complaints. He said there were no objective changes that would explain Mr. Brown's complaint of overwhelming pain in his neck and back.

[106] Dr. Lloyd concluded that Mr. Brown had suffered soft tissue injuries to his neck and back in the accident from which he should have recovered. He said that there are psychological factors that are inhibiting Mr. Brown's recovery. He said that there is nothing physically that is preventing Mr. Brown from going back to work as a farmer and truck driver.

[107] Dr. Lloyd said that since the epidural injections have not been particularly effective, he does not believe there is any efficacy to that treatment. He said the injections may well have produced a placebo effect. Dr. Lloyd agreed that Mr. Brown needs psychological counseling and he believes Mr. Brown will improve if he is properly treated.

[108] Dr. Lloyd reviewed the future care cost report and said that he did not believe Mr. Brown needed the grab-bars, special footwear, handrail, a book holder, help with housework and maintenance, a full-time farm worker or many of the medications he has taken. He said he does not need the transportation assistance or the allowances for hydrotherapy or massage therapy.

[109] Dr. Lloyd said that after 7-1/2 years the Plaintiff's soft tissue injuries have healed. He agreed, however, that about nine per cent of people who suffer soft tissue injuries have symptoms long after the vast majority of injured people have recovered. He said that Mr. Brown's pain is considerably greater than he would expect even if he falls within the small percentage of people who have prolonged symptoms.

[110] Dr. Alfred Margulies, a psychiatrist with a long history in the treatment of depression and pain disorders testified that he saw Mr. Brown on September 27, 2001. He said that following the accident in which Mr. Brown suffered soft tissue injuries, he tried to work through

his pain. When he could not, he became demoralized and eventually clinically depressed. As a result he said he developed an increased perception of his pain which has persisted. In his opinion, the depression has contributed to the prolongation of Mr. Brown's pain.

[111] Dr. Margulies testified that Mr. Brown has not had adequate treatment for depression and that appropriate treatment with medication and psychotherapy often produces good results. Dr. Margulies disagreed with Dr. MacDonald's diagnosis that Mr. Brown suffers from post-traumatic stress disorder. He said that Mr. Brown does not exhibit the symptoms of that disorder.

[112] Dr. Margulies said he would change the medication that Mr. Brown is taking and he would give him Zoloff in increasing amounts for approximately two months in the hope that he would change Mr. Brown's pain tolerance. He believes there is a reasonable chance for improvement in his pain.

[113] Dr. Margulies diagnosed Mr. Brown's condition as a pain disorder with psychological factors and depression. He does not believe that Mr. Brown suffers from chronic pain syndrome. Dr. Margulies said that Mr. Brown needs psychotherapy, medication and supervision. If that is combined with behavioural therapy he believes Mr. Brown should experience improvement. He agrees that no one can say for sure how great the improvement will be.

[114] Dr. Margulies said that treatment by Dr. MacDonald would be appropriate as long as it is coupled with appropriate medication. He said it will be difficult to treat Mr. Brown as he has been without adequate treatment for the last seven years.

[115] Dr. Margulies admitted that he is unable to say whether Mr. Brown is among the small percentage of people who do not recover from the effects of soft tissue injuries. As a result, he cannot say whether Mr. Brown has recovered from his soft tissue injuries. He is, however, certain that with proper treatment Mr. Brown will improve.

[116] As a result of the foregoing the Defendants allege that the Plaintiffs' claims for damages are excessive. They deny that Mr. Brown will require many of the items claimed for future care

or that he will suffer the future loss of income calculated by the experts who testified on his behalf.

CONCLUSIONS

[117] All of the physicians who examined the Plaintiff Brian Brown including Dr. Geoffrey Lloyd, the orthopedic surgeon who examined him on behalf of the defendants, agree that he suffered soft tissue injuries to his neck and back in the accident of March 4, 1997.

[118] In addition, all of the physicians including Dr. Margulies, the psychiatrist who examined Brian Brown on behalf of the Defendant, agree that he developed psychological problems following the accident. This latter conclusion is also supported by Dr. MacDonald, the psychologist who testified on behalf of Mr. Brown and by the evidence of Mr. Brown himself.

[119] There is, however, disagreement among the physicians as to the severity of Mr. Brown's soft tissue injuries and his psychological problems. Dr. Potter and Dr. Russell both believe that Mr. Brown is among the small percentage of people who suffer soft tissue injuries and don't recover within a matter of months. Dr. Lloyd believes that Mr. Brown has probably recovered from his soft tissue injuries and suggests that there is nothing physically preventing him from returning to work as a farmer. Even if Mr. Brown is among the small percentage of people who have persisting symptoms from soft tissue injuries, Dr. Lloyd believes Mr. Brown's complaints of pain are excessive.

[120] All of the physicians and Dr. MacDonald, the psychologist, agree that the psychological problems Mr. Brown has experienced since the accident have inhibited his recovery. Dr. Potter testified that Mr. Brown is suffering from chronic pain syndrome and he is depressed. Dr. Russell agrees with Dr. Potter. Dr. MacDonald, said that Mr. Brown is suffering from chronic pain together with depression and post-traumatic stress disorder. Dr. Lloyd said that there are psychological factors inhibiting Mr. Brown's recovery and Dr. Margulies testified that Mr. Brown has a pain disorder with psychological factors and depression. They all believe that Mr. Brown will require psychological treatment in the future.

[121] In spite of the foregoing, the defendants contend that Mr. Brown is doing more work on the farm than he has acknowledged and they point to the fact that the farm income has increased since the accident. The defendants also contend that with psychological treatment, Mr. Brown will improve in the future and be able to drive a truck for Glendale and do custom farm work. As a result, they deny that he will suffer a significant loss of future income.

[122] I am satisfied that Mr. Brown suffered soft tissue injuries to his neck, back and knees in the motor vehicle accident of March 4, 1997 and that he is one of the small percentage of people who do not recover within a matter of months. Since the generally accepted definition of chronic pain is pain that lasts for more than six months, I find that Mr. Brown also suffers from chronic pain which is organic in nature and which was caused by the motor vehicle accident.

[123] Doctors Potter, MacDonald and Margulies agree that Mr. Brown is clinically depressed and I accept their opinions in that regard. Consequently I am satisfied that Mr. Brown will require treatment for both his physical and psychological injuries in the future.

[124] For the last seven years Mr. Brown has suffered from pain in his neck and back and headaches caused by the accident. He is clinically depressed and unable to work for more than a few hours a day. He requires constant medical treatment and relations with his wife and daughters have been seriously disrupted.

[125] The experts disagree on what the future holds for Mr. Brown. Doctors Potter and Russell believe that Mr. Brown's condition is permanent and that he will continue to suffer from chronic pain in the future. In their view he is not competitively employable. Doctors Lloyd and Margulies believe there are psychological factors affecting Mr. Brown's ability to work and when those factors are treated, there is a reasonable chance that his condition will improve and he will be able to return to work.

[126] It has been seven years since the accident and Mr. Brown is still partially disabled. He has seen Dr. Potter twice within the last year and Dr. Russell on a monthly basis for the last two years. Both of these physicians treat chronic pain cases on a regular basis and they have a wealth of experience in pain management.

[127] Dr. Lloyd and Dr. Margulies saw Mr. Brown on one occasion only and they have not been treating him. Although, they both believe that Mr. Brown will improve in the future, they acknowledge that it is difficult to predict his future course with certainty. Neither doctor has seen Mr. Brown for about three years. As a result, I am unable to accept their opinions over the opinions of Doctors Potter, Russell and MacDonald.

GENERAL DAMAGES

[128] I therefore find that the plaintiff will continue to suffer from pain in his neck, back and shoulders and from headaches on a permanent basis. While I am satisfied that he will experience some improvement, with further treatment I find that he will not be competitively employable in the future. He will continue to require treatment for both pain and depression and he will continue to suffer a loss of enjoyment of life. I assess his general damages for pain, suffering and loss of enjoyment of life at \$90,000.00.

[129] Mrs. Brown and her three daughters have *Family Law Act* claims arising out of the accident. They will continue to be deprived to some extent of Brian Brown's care, guidance and companionship and they will have to do additional work around the house and farm. I assess their claims at \$20,000.00 for Josianne Brown and \$5,000.00 for each of the three daughters for a total of \$35,000.00.

SPECIAL DAMAGES

[130] Mr. Hoare calculates Mr. Brown's loss of income to the date of the trial at \$144,800.00. That amount includes loss of income from custom work and trucking and payment for additional custom work on his own farm. I accept Mr. Hoare's hypothesis that this is the amount that Mr. Brown lost because he was restricted in the work he could do both on and off the farm. As a result, I am allowing the sum of \$144,800.00 for past loss of income.

[131] The balance of Mr. Brown's special damages include the following items:

Mileage	\$ 4,255.63
O.H.I.P.	\$ 7,665.92

Chiropractic	\$ 1,336.50
Massage	\$ 920.00
Drugs	\$ 4,108.08
Hired help	\$ 18,752.82
Additions to the barn	<u>\$ 62,428.58</u>
TOTAL	<u>\$ 99,467.53</u>

All of the items claimed for special damages were legitimately incurred as a result of the accident. Consequently, I am allowing the abovementioned items, except for the additions to the barn. The barn was enlarged and mechanized because of the accident but those changes represent capital improvements which increased the value of the farm and which will increase productivity and profits in the future. Making changes to the barn was a business decision and the expense incurred is not recoverable. I therefore allow special damages of \$37,038.95 plus past loss of income of \$144,800.00 for a total of \$181,838.95.

FUTURE CARE COSTS

[132] Mr. Brown was unable to complete the work capacity assessment carried out by Future Care Cost Associates. He couldn't work at the level required for farming for more than 45 minutes. In addition, he was unable to sit in one place for more than 20 minutes and, consequently, the assessment was terminated. As a result, I am satisfied that Mr. Brown will require some assistance with his farming activities in the future.

[133] Mr. Brown's claim for future care costs was presented under the headings activities of daily living, personal services, transportation, vocation, medications and rehabilitation. The medication and rehabilitation schedule was revised after the trial was completed and a new schedule was filed on consent.

[134] After reviewing both the original and revised schedules, I make the following findings. Under the heading "Activities of Daily Living" I have allowed \$137.83 for the initial installation of grab bars in the bathroom. The plaintiff has not satisfied me that he will require the other

items in that schedule with the exception of supportive footwear. I have not however allowed the claim for supportive footwear because he would have required such footwear regardless of the accident.

[135] Under the “Transportation” schedule I am not satisfied that any of the items other than mileage are necessary or properly claimed in this lawsuit. I am allowing \$600.00 per annum for mileage. The present value of that award for life is \$13,775.00.

[136] Under the heading “Schedule of Personal Services” I am going to allow \$3,500.00 for the annual cost of a handyman to age 65 to assist with housework and exterior maintenance that Mr. Brown and his wife are unable to perform. The evidence is that the plaintiff’s house and yard are run-down because Mr. Brown has not been able to do the require maintenance. As a result, an award of \$3,500.00 a year to age 65 is reasonable. The present value of that award is \$54,810.00.

[137] Under the heading “Vocation” I am going to allow the sum of \$10,000.00 per annum for custom farm work including planting, spraying, fertilizing, combining and manure removal relating to Mr. Brown’s own farm to age 65. I am satisfied that Mr. Brown will not be able to manage those functions on his own. I am conscious of the fact that Mr. Brown hired people to do custom work for him in the past and I have taken that into account in assessing the additional amount he will have to spend for this work in the future. The present value of that award is \$156,600.00.

[138] I have only allowed the claims for the handyman and the cost of custom farm work to age 65 because the evidence is that Mr. Brown and his wife wish to pass the farm on to their children. I am therefore satisfied that by age 65 Mr. Brown and his wife will have retired or turned the farm over to one of their daughters and her husband on some kind of purchase arrangement.

[139] Under the heading “Medication and Rehabilitation” I am allowing an annual cost for drugs of \$1,200.00 a year for life. That includes Nexium, Oxycocet, Rofexib and Tylenol. I am not allowing anything for home hydrotherapy or additional exercise equipment all of which Mr.

Brown has managed without for the last seven years. The present value of that award is \$27,548.40.

[140] I will allow 20 sessions of psychological counseling at \$126.00 per session for a total of \$2,520.00. I am not allowing anything for massage therapy or occupational therapy as I am not satisfied on the evidence that Mr. Brown would avail himself of those therapies in any event

[141] As a result, I am allowing the initial future care costs for grab bars and psychological counseling totaling \$2,657.83. I am allowing \$13,775.00 for mileage, \$54,810.00 for the handyman and \$156,600.00 for custom farm work both to age 65 and \$27,548.40 for drugs for life. The gross future care costs therefore total \$255,391.23. The allowances for the handyman, custom farm work, drugs and mileage will have to be adjusted for general and specific contingencies and grossed up to reflect the impact of income taxes.

[142] Under the heading general contingencies, some adjustment must be made for the fact that farm prices may make it uneconomic to carry on some aspects of the farm operation and weather conditions may adversely affect the operation of the farm from time to time. Under specific contingencies Mr. Brown may experience some improvement in the future and not require as much help on the farm as anticipated or he may sell the farm before he reaches age 65. As well, Mr. Brown's condition could worsen.

[143] Considering these and other factors that may affect Mr. Brown and the operation of his farm in the future, I reduce the allowance for the cost of future care for drugs, mileage, the handyman and custom farm work by 10% leaving a total of \$227,460.10 plus the allowance for grab bars and psychological counseling of \$2,657.83 for an overall total of \$230,117.89. If the parties are unable to agree on the gross-up to reflect the tax impact on the award, I will hear further evidence and their submissions on a date to be arranged by the trial coordinator.

FUTURE LOSS OF INCOME

[144] The plaintiff, Brian Brown, alleges that he will suffer a loss of income in the future due to his inability to do custom farm work for his customers and his inability to deliver trailers for

Glendale Mobile Homes. He also contends that the income from his farming operation will be reduced by his need to hire people to help him with planting, spraying, fertilizing and harvesting. Mr. Hoare, the forensic accountant, was retained to calculate the potential future losses.

[145] Mr. Hoare testified that based on his earnings prior to the accident he assessed Mr. Brown's loss of trucking income at \$7,500.00 per year and his loss of income from custom farm work at \$13,600.00 per year. Further, he testified that Mr. Brown would spend approximately \$9,500.00 per year in the future to hire people to assist him with his farming operation. As a result, he assessed Mr. Brown's claim for future loss of income at \$30,100.00 per annum.

[146] The amount of Mr. Brown's future loss of income cannot be proved or disproved with certainty. As a result, the plaintiff need only establish that there is a real and substantial risk that his future earnings will be diminished as a result of his injuries.

[147] Compensation for future loss of income will then depend on the degree of risk established. The greater the risk of loss, the greater will be the compensation. The measure of compensation will also depend on whether there is a possibility that the plaintiff would have suffered any of the future losses regardless of his injuries. The greater this possibility, the lower the award for future loss of income.

[148] In this case, I have allowed Mr. Brown the sum of \$10,000.00 a year to age 65 to permit him to hire people to help with the planting, spraying, fertilizing and harvesting on his own farm. Since that amount was allowed under the claim for the cost of future care, I am satisfied that it should not be duplicated by an award for such an amount under loss of future income. I am, therefore, disallowing Mr. Brown's claim for \$9,500.00 a year for hired help under this head of damages.

[149] Mr. Brown's claim for an annual loss of income from driving a truck for Glendale Mobile Homes is justified. In view of his injuries and the fact that he will be required in the future to assist in the farming operation, it will be impossible for him to earn income working off the farm. I therefore accept Mr. Hoare's assessment that if he had not been injured, Mr. Brown

would have earned approximately \$7,500.00 a year delivering trailers for Glendale Mobile Homes and that he has lost that source of income.

[150] Mr. Hoare assessed Mr. Brown's loss of income from custom farming at \$13,600.00 per annum. Clearly, that income is lost to Mr. Brown for the same reasons the trucking income is lost to him. As a result, I accept Mr. Hoare's assessment that Mr. Brown will lose \$13,600.00 a year in the future due to the loss of his ability to do custom farm work for his neighbours and former customers.

[151] I therefore assess Mr. Brown's future loss of income at \$21,100.00 per annum. Since the present value of \$1,000.00 to age 65 is \$15,660.00, the present value of Mr. Brown's future loss of income claim totals \$330,426.00.

[152] The defendants argue that there is no real and substantial possibility that Mr. Brown will lose income in the future because his condition will improve with treatment and because his farm income will improve with mechanization. In addition he will be spending all his time on his own farm and he will increase his income from that source. In my view, that argument cannot succeed. Prior to the accident, Mr. Brown was an aggressive, hardworking farmer who maximized his income by working off the farm. He is no longer able to do that because of the injuries he suffered in the accident. As a result, I have no doubt that he will lose income in the future because of his inability to do custom farm work and to drive a truck for Glendale Trailers.

[153] In this case, there are a number of general contingencies that I am required to consider. Those include unemployment, illness and accidents. As well, there are specific contingencies such as the fact that Mr. Brown's condition may improve with treatment and he may have lost customers in any event or he may have sold the farm.

[154] Brian Brown is now 44 years of age and he has always lived on a farm. His education and background are in farming and I have no doubt that he will continue farming for the balance of his working life. Since I am only allowing future loss of income to age 65, which is a relatively short period, I am satisfied that the contingencies in this case are a small factor. Indeed, the positive and negative contingencies almost balance each other. I have decided that

there should be a negative contingency applied to the claim for future loss of income of 10 per cent.

[155] After taking into account the contingencies, I find that Mr. Brown's future loss of income will total \$297,383.40. I therefore assess the plaintiff's damages as follows:

General Damages:	\$ 90,000.00
Family Law Act Claims:	\$ 35,000.00
Special Damages:	\$181,838.95
Future Care Costs:	\$230,117.89
Future Loss of Income:	<u>\$297,383.40</u>
Total:	<u>\$834,340.24</u>

[156] After the future care costs are grossed-up the total assessment will have to be reduced by 25 per cent to reflect the division in liability. In addition, the plaintiff's recovery will be reduced by the income replacement benefits received by Brian Brown in the amount of \$55,999.91.

MANAGEMENT FEE

[157] The net amount awarded to the plaintiff Brian Brown is a large amount and I am satisfied that there should be an additional 5 percent of his gross award allowed for financial management and normal financial administration. If the parties are unable to agree on the

amount of the gross-up, together with pre-judgment interest and costs, I will hear further submissions on a date to be arranged with the trial co-ordinator.

"Justice W. A. Jenkins"
Justice W. A. Jenkins

Released: June 15, 2004